Tyler Allen Lofall - Plaintiff
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UNITED STATES DISTRICT COURT

DISTRICT OF OREGON

PORTLAND DIVISION

TYLER A. LOFALL, Plaintiff, v. **THE COUNTY OF CLACKAMAS at el,** *West Linn Pd, Officer Dana Gunnarson, Officer Catlin Blyth, Deputy District Attorney Rebecca Portlock, Clackamas County Jail, Clackamas County Sheriff Office, Clackamas County Officer John Doe 1, Officer John Doe 2,* Defendant(s),	**Case No.: 3:24-cv-839** CAUSES OF ACTION SUMMARY WITH SUPPORTING EXHIBITS

I. INTRODUCTION

I, **Tyler A. Lofall**, submit this **Causes of Action Summary with Supporting Exhibits** to provide a clear and organized presentation of each of my legal claims, the defendants involved, the supporting allegations from my Amended Complaint, and the exhibits that substantiate each claim

II. CAUSES OF ACTION

1. Table: Causes of Action and Corresponding Exhibits

Cause of Action	Exhibit Number	Exhibit Description	How It Ties into the Complaint
First Cause of Action: Unlawful Arrest/False Arrest (Fourth Amendment Violation)	**Exhibit 19**	Photographs depicting Macy attacking Plaintiff with a hammer and hose.	Demonstrates Macy's aggressive behavior, supporting Plaintiff's claim of self-defense and lack of probable cause for arrest.
	Exhibit 20	Additional photographs of Macy's violent actions.	Further evidence of Macy's aggression, reinforcing the argument that Plaintiff was unjustly arrested.
	Exhibit 21	Photographs of property damage caused by Macy.	Shows the extent of property destruction, highlighting the harassment Plaintiff faced and the need for police protection which was allegedly neglected.
	Exhibit 23	Discovery from Officer Dana Gunnarson.	Reveals biased investigation reports that misrepresented events, supporting the claim of unlawful arrest.
	Exhibit 26	West Linn Police Department Reports and Policy Violations (44 pages).	Indicates police inaction during Plaintiff's harassment, demonstrating failure to protect Plaintiff and justifying the unlawful arrest.
Second Cause of Action: Malicious Prosecution (Fourth and Fourteenth Amendments Violation)	**Exhibit 2**	Transcript of Court Proceedings on June 10th, 2022.	Shows DA Portlock's malicious intent despite exculpatory evidence, supporting claims of ongoing prosecution without probable cause.
	Exhibit 34	Documents supporting DA Portlock's malicious prosecution.	Provides additional evidence of DA Portlock's intent to unjustly prosecute Plaintiff, reinforcing the malicious prosecution claim.
	Exhibit 5	Domestic Violence Assessment Surveys.	Indicates false allegations against Plaintiff, undermining the

Cause of Action	Exhibit Number	Exhibit Description	How It Ties into the Complaint
			legitimacy of the prosecution and supporting the malicious prosecution claim.
Third Cause of Action: Conspiracy to Violate Civil Rights (42 U.S.C. § 1983)	**Exhibit 1**	Motion to Leave to File Second Amended Complaint.	Demonstrates DA Portlock's and other Defendants' intent to obstruct justice, supporting the conspiracy claim.
	Exhibit 8	Body Camera Footage Suppression Evidence.	Shows suppression of exculpatory evidence by Defendants, highlighting their conspiracy to deprive Plaintiff of civil rights.
	Exhibit 13	Deletion of Plaintiff's Legal Files by Guard Baker.	Provides evidence of Defendants' efforts to obstruct Plaintiff's legal defense, reinforcing the conspiracy to violate civil rights.
	Exhibit 32	Additional declarations and testimonies supporting conspiracy.	Further substantiates the claim that multiple Defendants conspired to undermine Plaintiff's rights and legal proceedings.
Fourth Cause of Action: Failure to Protect/Failure to Prevent Harm (Fourteenth Amendment Violation)	**Exhibit 4**	Police Dispatch Records from March 4th, 2022.	Demonstrates Plaintiff's multiple reports of Macy's violent behavior and the police's failure to act, supporting the failure to protect claim.
Fifth Cause of Action: Cruel and Unusual Punishment (Fourteenth Amendments Violation)	**Exhibit 12**	Medical Records and Jail Reports detailing Plaintiff's medical neglect.	Shows denial of necessary medical care and exposure to COVID-19, supporting claims of cruel and unusual punishment.
Sixth Cause of Action: False Imprisonment (Fourth and Fourteenth Amendments Violation)	**Exhibit 12**	Jail Reports detailing unlawful detention beyond court-ordered release.	Provides evidence of Plaintiff's continued detention without legal justification, supporting the false imprisonment claim.
Seventh Cause of Action: Deliberate Indifference to Medical	**Exhibit 12**	Medical Records showing denial of corrective lenses and	Demonstrates deliberate indifference to Plaintiff's serious

Cause of Action	Exhibit Number	Exhibit Description	How It Ties into the Complaint
Needs (Fourteenth Amendments Violation)		inadequate medical care.	medical needs, reinforcing the corresponding claim.
	Exhibit 32	Declarations regarding medical neglect in jail.	Further evidence of the jail staff's deliberate indifference to Plaintiff's health requirements.
Eighth Cause of Action: Intentional Interference with Contractual Relations	**Exhibit 9**	Assignment of Benefits (AOB) Documentation valued at $111,943.56.	Shows how Defendants' actions, such as deleting legal files, led to the forfeiture of Plaintiff's contractual rights, supporting the interference claim.
	Exhibit 13	Evidence of law library access denial and file deletion.	Demonstrates intentional actions by Defendants to interfere with Plaintiff's ability to defend his contractual relations, reinforcing the claim.
Ninth Cause of Action: Monell Claim – Failure to Train and Official Custom of Deliberate Indifference	**Exhibit 26**	West Linn Police Department Reports and Policy Violations.	Highlights systemic policy failures and lack of training, supporting the Monell claim for municipal liability.
	Exhibit 27	Documentation of inadequate training and supervision.	Further evidence of deliberate indifference in training practices, reinforcing the Monell claim.
Tenth Cause of Action: Denial of Right to Civil Jury Trial (Seventh Amendment Violation)	**Exhibit 1**	Motion to Leave to File Second Amended Complaint.	Demonstrates efforts by Defendants to obstruct Plaintiff's right to a jury trial, supporting the denial claim.
	Exhibit 2	Transcript of Court Proceedings showing trial delays.	Provides evidence of DA Portlock's manipulation to prevent a timely jury trial, reinforcing the claim.
	Exhibit 8	Body Camera Footage Suppression Evidence.	Shows suppression of evidence necessary for a fair jury trial, supporting the denial of the right.
	Exhibit 13	Deletion of Plaintiff's Legal Files by Guard Baker.	Demonstrates intentional obstruction of Plaintiff's ability to present a jury trial, reinforcing the claim.

Cause of Action	Exhibit Number	Exhibit Description	How It Ties into the Complaint
Eleventh Cause of Action: Violation of Right to Due Process (Fifth and Fourteenth Amendments)	**Exhibit 1**	Motion to Leave to File Second Amended Complaint.	Highlights Defendants' efforts to obstruct justice and deny due process, supporting the violation claim.
	Exhibit 2	Transcript of Court Proceedings and DA Portlock's statements.	Shows deliberate actions to undermine Plaintiff's legal defense, violating due process rights.
	Exhibit 3	List of Ignored Discovery Requests and Motions.	Demonstrates suppression of evidence and legal filings, supporting the due process violation claim.
	Exhibit 4	Police Dispatch Records from March 4th, 2022.	Provides evidence of Defendants' failure to act on Plaintiff's reports, violating due process.
	Exhibit 5	Domestic Violence Assessment Surveys.	Indicates false allegations and lack of legitimate charges, undermining due process rights.
	Exhibit 9	Assignment of Benefits (AOB) Documentation valued at $111,943.56.	Shows financial and property rights infringed upon without due process.
	Exhibit 12	Medical Records and Jail Reports detailing Plaintiff's medical neglect and unlawful detention.	Demonstrates violations of due process through prolonged detention and denial of medical care.
	Exhibit 13	Deletion of Plaintiff's Legal Files by Guard Baker.	Shows intentional obstruction of Plaintiff's legal defense, violating due process rights.
	Exhibit 19	Photographs depicting Macy attacking Plaintiff with a hammer and hose.	Supports claims of self-defense and lack of probable cause, violating due process rights.
	Exhibit 20	Additional photographs of Macy's violent actions.	Further evidence of Plaintiff's innocence and wrongful prosecution, violating due process.

Cause of Action	Exhibit Number	Exhibit Description	How It Ties into the Complaint
	Exhibit 21	Photographs of property damage caused by Macy.	Highlights the harassment and need for police protection, supporting due process claims.
	Exhibit 23	Discovery from Officer Dana Gunnarson.	Reveals biased investigation and lack of probable cause, violating due process rights.
	Exhibit 26	West Linn Police Department Reports and Policy Violations.	Indicates systemic failures and lack of proper investigation, violating due process.
	Exhibit 27	Documentation of inadequate training and supervision.	Shows municipal liability for failure to train, violating due process through systemic negligence.
	Exhibit 32	Additional declarations and testimonies supporting conspiracy.	Provides evidence of systemic corruption and obstruction of justice, violating due process.
	Exhibit 34	Documents supporting DA Portlock's malicious prosecution.	Further evidence of DA Portlock's intent to unjustly prosecute Plaintiff, violating due process.
Twelfth Cause of Action: Violation of Right to Counsel and Fair Trial (Sixth Amendment Violation)	**Exhibit 1**	Motion to Leave to File Second Amended Complaint.	Shows Defendants' efforts to obstruct effective legal representation, violating the right to counsel.
	Exhibit 2	Transcript of Court Proceedings showing trial delays and DA Portlock's statements.	Demonstrates manipulation to delay trial and deny a fair trial, reinforcing the Sixth Amendment violation.
	Exhibit 5	Domestic Violence Assessment Surveys.	Indicates false allegations undermining effective legal representation, supporting the Sixth Amendment claim.
	Exhibit 8	Body Camera Footage Suppression Evidence.	Shows suppression of exculpatory evidence necessary for a fair trial, violating the right to counsel and fair trial.
	Exhibit 13	Deletion of Plaintiff's Legal Files by Guard Baker.	Demonstrates intentional obstruction of legal defense, violating the right to counsel and fair trial.

III. EXPLANATION OF EACH CAUSE OF ACTION

1. UNLAWFUL DETENTION (FOURTH AMENDMENT)

- **Defendants Involved:** Officers Dana Gunnarson and Catlin Blyth, West Linn Police Department (WLPD)
- **Allegations:**
  - Arrested Plaintiff without probable cause within eight minutes of arriving at the scene (¶ 25).
  - Failed to conduct a proper investigation; relied solely on Macy's manipulated account despite her aggressive behavior (¶¶ 26, 44).
- **Supporting Exhibits:**
  - **Exhibit 23:** Officer Gunnarson's biased investigation report.
    - *Note:* Demonstrates the lack of a thorough investigation and reliance on unreliable witness statements.
  - **Exhibits 19 & 20:** Photographs showing Macy as the aggressor.
    - *Note:* Contradicts officers' claims by providing visual evidence of Macy's violent actions.

2. MALICIOUS PROSECUTION (FOURTH AND FOURTEENTH AMENDMENTS)

- **Defendants Involved:** Deputy District Attorney Rebecca Portlock, WLPD, Officers Gunnarson and Blyth
- **Allegations:**

- Initiated criminal proceedings without probable cause (¶ 52).
- Acted with malice and improper purpose, continuing prosecution despite lack of evidence (¶ 53).
- Suppressed exculpatory evidence, hindering Plaintiff's defense (¶¶ 54, 55).

- **Supporting Exhibits:**
  - **Exhibit 2:** Transcript where Macy recants and exposes prosecutorial misconduct.
    - *Note:* Shows Macy admitting Plaintiff committed no crimes, undermining the prosecution's case.
  - **Exhibit 3:** List of ignored discovery requests.
    - *Note:* Highlights Defendants' failure to provide critical evidence supporting Plaintiff's innocence.
  - **Exhibit 23:** Evidence of fabricated charges.
    - *Note:* Further supports the claim of Defendants fabricating or manipulating charges against Plaintiff.

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3. CONSPIRACY TO DEPRIVE CIVIL RIGHTS (42 U.S.C. § 1983)

- **Defendants Involved:** Deputy District Attorney Rebecca Portlock, Judge Steele, Court-Appointed Advisor Rubin Medina, Officers Gunnarson and Blyth
- **Allegations:**
  - Collusion to delay trial and manipulate proceedings (¶¶ 58, 93).
  - Suppressed evidence and coerced false testimony from Macy (¶¶ 50, 51).
- **Supporting Exhibits:**
  - **Exhibit 1:** Transcript showing collusion to delay trial.
    - *Note:* Provides direct evidence of Defendants working together to obstruct the legal process.
  - **Exhibit 2:** Macy's testimony revealing coercion.
    - *Note:* Demonstrates Macy being pressured to provide false testimony, supporting the conspiracy claim.

- **Exhibit 3:** Ignored legal requests indicating coordinated obstruction.
  - *Note:* Shows Defendants intentionally disregarding Plaintiff's legal motions to further their conspiracy.

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4. FAILURE TO PREVENT HARM (FOURTEENTH AMENDMENT)

- **Defendants Involved:** Officers Gunnarson and Blyth, WLPD, Clackamas County Sheriff's Office
- **Allegations:**
  - Ignored multiple reports of Macy's violent behavior (¶¶ 37–39, 97).
  - Failed to take action to protect Plaintiff from ongoing harm (¶ 98).
- **Supporting Exhibits:**
  - **Exhibit 4:** Police dispatch records of Plaintiff's calls for help.
    - *Note:* Demonstrates Plaintiff's multiple reports of Macy's aggression and the Defendants' inaction.
  - **Exhibit 21:** Photographs of property damage caused by Macy.
    - *Note:* Visual evidence of the harm Plaintiff was subjected to, which Defendants failed to prevent.

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5. CRUEL AND UNUSUAL PUNISHMENT (FOURTEENTH AMENDMENT)

- **Defendants Involved:** Clackamas County Jail, Jail Staff (John Does 1 & 2)
- **Allegations:**
  - Denied access to necessary medical care, leaving Plaintiff effectively blind (¶ 56).
  - Exposed Plaintiff to harmful conditions, including COVID-19, while in custody (¶ 57).
- **Supporting Exhibits:**
  - **Exhibit 12:** Documentation of harmful jail conditions.

- *Note:* Provides evidence of neglect and exposure to unsafe conditions in jail.
- **Exhibit 13:** Evidence of deleted legal files, exacerbating punishment.
  - *Note:* Shows intentional obstruction of Plaintiff's legal defense, worsening his detention conditions.

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6. FALSE IMPRISONMENT (FOURTH AND FOURTEENTH AMENDMENTS)

- **Defendants Involved:** Clackamas County Jail, Jail Staff (John Does 1 & 2)
- **Allegations:**
  - Held Plaintiff beyond court-ordered release date of July 1, 2022, until July 8, 2022, without legal justification (¶¶ 130–134).
- **Supporting Exhibits:**
  - **Exhibit 12:** Records showing unlawful extended detention.
    - *Note:* Confirms Plaintiff was unlawfully held beyond the court's release order.

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7. DELIBERATE INDIFFERENCE (FOURTEENTH AMENDMENT)

- **Defendants Involved:** Clackamas County Jail, Jail Staff (John Does 1 & 2)
- **Allegations:**
  - Knew of substantial risk to Plaintiff's health and safety but disregarded it (¶¶ 136–140).
- **Supporting Exhibits:**
  - **Exhibit 12:** Denial of medical care and basic needs.
    - *Note:* Evidence of Plaintiff's medical needs being ignored, demonstrating deliberate indifference.
  - **Exhibit 13:** Deletion of legal files critical to Plaintiff's defense.

- *Note:* Shows intentional obstruction of Plaintiff's ability to receive proper legal representation and care.

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8. INTENTIONAL INTERFERENCE WITH CONTRACTUAL RELATIONS

- **Defendants Involved:** Clackamas County Jail, Jail Staff (Heidi Wooster), Clackamas County Sheriff's Office
- **Allegations:**
  - Prevented Plaintiff from accessing the law library to protect his Assignment of Benefits (AOB) contract (¶¶ 141–144).
  - Resulted in financial loss of $111,943.56 due to Defendants' interference (¶ 144).
- **Supporting Exhibits:**
  - **Exhibit 9:** Documentation of lost AOB due to interference.
    - *Note:* Shows the financial impact of Defendants' actions on Plaintiff's contractual rights.
  - **Exhibit 12:** Evidence of denied access to legal resources.
    - *Note:* Demonstrates how Plaintiff was obstructed from defending his contractual interests.

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9. MONELL CLAIM – FAILURE TO TRAIN AND OFFICIAL CUSTOM OF DELIBERATE INDIFFERENCE

- **Defendants Involved:** Clackamas County, West Linn Police Department (WLPD)
- **Allegations:**
  - Policies or customs led to constitutional violations (¶¶ 146–150).
  - Failed to adequately train and supervise officers and staff, resulting in Plaintiff's rights being violated (¶¶ 148–150).
- **Supporting Exhibits:**

- **Exhibit 26:** WLPD reports showing policy violations.
  - *Note:* Highlights systemic policy failures contributing to constitutional violations.
- **Exhibit 27:** WLPD Policy Manual highlighting required procedures that were ignored.
  - *Note:* Demonstrates lack of proper training and adherence to required procedures, supporting the Monell claim.

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10. DENIAL OF RIGHT TO CIVIL JURY TRIAL (SEVENTH AMENDMENT VIOLATION)

- **Defendants Involved:** Clackamas County, West Linn Police Department, Clackamas County Circuit Court, Judge Steele, Deputy District Attorney Rebecca Portlock
- **Allegations:**
  - Interfered with and denied Plaintiff's right to a civil jury trial by obstructing access to courts and legal resources (¶¶ 152–156).
- **Supporting Exhibits:**
  - **Exhibit 1:** Transcript showing Defendants' efforts to delay and manipulate trial proceedings.
    - *Note:* Provides evidence of intentional obstruction of Plaintiff's right to a jury trial.
  - **Exhibit 2:** Transcript of Court Proceedings showing trial delays and DA Portlock's statements.
    - *Note:* Demonstrates Defendants' manipulation to prevent a timely jury trial.
  - **Exhibit 8:** Body Camera Footage Suppression Evidence.
    - *Note:* Shows suppression of exculpatory evidence necessary for a fair jury trial.
  - **Exhibit 13:** Deletion of Plaintiff's Legal Files by Guard Baker.

- *Note:* Indicates intentional obstruction of legal defense, preventing a fair jury trial.

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11. VIOLATION OF RIGHT TO DUE PROCESS (FIFTH AND FOURTEENTH AMENDMENTS)

- **Defendants Involved:** West Linn Police Department, Officers Gunnarson and Blyth, Clackamas County, Clackamas County Sheriff's Office, Jail Staff, Deputy District Attorney Rebecca Portlock, Judge Steele, Court-Appointed Advisor Rubin Medina
- **Allegations:**
  - Acted under color of state law to deprive Plaintiff of liberty and property without due process (¶¶ 157–161).
  - Suppressed exculpatory evidence, denied access to legal resources, manipulated court proceedings, and unlawfully detained Plaintiff (¶¶ 158–161).
- **Supporting Exhibits:**
  - **Exhibit 1:** Motion to Leave to File Second Amended Complaint.
    - *Note:* Highlights Defendants' efforts to obstruct justice and deny due process.
  - **Exhibit 2:** Transcript of Court Proceedings and DA Portlock's statements.
    - *Note:* Demonstrates intentional manipulation to undermine Plaintiff's legal defense.
  - **Exhibit 3:** List of Ignored Discovery Requests and Motions.
    - *Note:* Shows Defendants' suppression of critical evidence and legal filings.
  - **Exhibit 4:** Police Dispatch Records from March 4th, 2022.
    - *Note:* Provides evidence of Defendants' failure to act on Plaintiff's reports, violating due process.
  - **Exhibit 5:** Domestic Violence Assessment Surveys.
    - *Note:* Indicates false allegations and lack of legitimate charges, undermining due process rights.

- **Exhibit 9:** Assignment of Benefits (AOB) Documentation valued at $111,943.56.
  - *Note:* Shows financial and property rights infringed upon without due process.
- **Exhibit 12:** Medical Records and Jail Reports detailing Plaintiff's medical neglect and unlawful detention.
  - *Note:* Demonstrates violations of due process through prolonged detention and denial of medical care.
- **Exhibit 13:** Deletion of Plaintiff's Legal Files by Guard Baker.
  - *Note:* Shows intentional obstruction of Plaintiff's legal defense, violating due process rights.
- **Exhibits 19 & 20:** Photographs depicting Macy attacking Plaintiff with a hammer and hose.
  - *Note:* Supports claims of self-defense and lack of probable cause, violating due process rights.
- **Exhibit 21:** Photographs of property damage caused by Macy.
  - *Note:* Highlights the harassment and need for police protection, supporting due process claims.
- **Exhibit 23:** Discovery from Officer Dana Gunnarson.
  - *Note:* Reveals biased investigation and lack of probable cause, violating due process rights.
- **Exhibit 26:** West Linn Police Department Reports and Policy Violations.
  - *Note:* Indicates systemic failures and lack of proper investigation, violating due process.
- **Exhibit 27:** Documentation of inadequate training and supervision.
  - *Note:* Shows municipal liability for failure to train, violating due process through systemic negligence.
- **Exhibit 32:** Additional declarations and testimonies supporting conspiracy.
  - *Note:* Provides evidence of systemic corruption and obstruction of justice, violating due process.
- **Exhibit 34:** Documents supporting DA Portlock's malicious prosecution.

- *Note:* Further evidence of DA Portlock's intent to unjustly prosecute Plaintiff, violating due process.

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12. VIOLATION OF RIGHT TO COUNSEL AND FAIR TRIAL (SIXTH AMENDMENT VIOLATION)

- **Defendants Involved:** Deputy District Attorney Rebecca Portlock, Clackamas County
- **Allegations:**
  - Interfered with Plaintiff's right to the assistance of counsel by colluding to delay trial and suppressing exculpatory evidence (¶¶ 163–165).
  - Denied Plaintiff effective assistance of counsel by withholding critical evidence and manipulating trial dates (¶¶ 163–165).
- **Supporting Exhibits:**
  - **Exhibit 1:** Motion to Leave to File Second Amended Complaint.
    - *Note:* Shows Defendants' efforts to obstruct effective legal representation.
  - **Exhibit 2:** Transcript of Court Proceedings showing trial delays and DA Portlock's statements.
    - *Note:* Demonstrates manipulation to delay trial and deny a fair trial.
  - **Exhibit 5:** Domestic Violence Assessment Surveys.
    - *Note:* Indicates false allegations undermining effective legal representation.
  - **Exhibit 8:** Body Camera Footage Suppression Evidence.
    - *Note:* Shows suppression of exculpatory evidence necessary for a fair trial.
  - **Exhibit 13:** Deletion of Plaintiff's Legal Files by Guard Baker.
    - *Note:* Indicates intentional obstruction of legal defense, preventing a fair trial.

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2. Constitutional Provisions

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1. **FOURTH AMENDMENT**

The Fourth Amendment guarantees protection from unreasonable searches and seizures. The unlawful seizure of Plaintiff's property, as well as his subsequent arrest and imprisonment without probable cause, constitute violations of Plaintiff's Fourth Amendment rights. Defendants acted without reasonable justification in detaining Plaintiff, ignored exculpatory evidence, and fabricated probable cause.

2. **FIFTH AND FOURTEENTH AMENDMENTS (DUE PROCESS CLAUSE)**

The Plaintiff asserts that his rights under the Due Process Clause of the Fifth and Fourteenth Amendments were violated. Specifically, Plaintiff was deprived of liberty without due process, as evidenced by systemic corruption, refusal by law enforcement officers to respond to his legal filings, and judicial rulings in favor of Defendants that ignored substantial evidence. These actions deprived Plaintiff of a fair opportunity to defend against false charges and to hold those responsible accountable.

3. **SIXTH AMENDMENT**

The Sixth Amendment guarantees the right to a speedy and public trial, along with the right to be informed of the nature of accusations and to confront witnesses. Plaintiff was deprived of these rights, as he was denied an opportunity for a fair and speedy trial and was systematically obstructed from defending himself against the accusations. Plaintiff's repeated motions and efforts were disregarded, and his access to vital discovery materials was unjustly blocked.

4. **SEVENTH AMENDMENT**

The Plaintiff asserts his right under the Seventh Amendment to a civil jury trial. Despite numerous efforts to bring his claims to a jury, Plaintiff's requests were ignored, denying him the opportunity to have the merits of his case reviewed by his peers. The actions of the courts, including intentional procedural manipulation, infringed upon Plaintiff's right to a fair civil trial.

5. **FOURTEENTH AMENDMENT (EQUAL PROTECTION CLAUSE)**

The Plaintiff's rights under the Equal Protection Clause of the Fourteenth Amendment were systematically violated. Plaintiff faced judicial bias and procedural obstacles, preventing him from receiving equal treatment under the law. The judiciary's favoritism towards Defendants, compounded by procedural barriers, demonstrated a failure to apply the law equitably, ultimately denying Plaintiff justice and protection.

6. **FOURTEENTH AMENDMENT (CONDITIONS OF CONFINEMENT)**

As a pre-sentenced detainee, Plaintiff's rights fall under the Fourteenth Amendment, which guarantees due process protections for detainees. Plaintiff was subjected to punitive treatment during his pretrial detention, including the denial of corrective lenses, deliberate exposure to COVID-19, and inhumane conditions. These actions constitute deliberate indifference by Defendants to Plaintiff's health, safety, and well-being, thereby violating his Fourteenth Amendment rights.

7. **SYSTEMIC CORRUPTION AND DENIAL OF RIGHTS**

Plaintiff asserts that the actions of the Defendants, including law enforcement, the District Attorney's office, and the judiciary, reflect systemic efforts to undermine Plaintiff's constitutional rights. This includes ignoring legal filings, deliberate delays, and collusion among officials to prevent Plaintiff from receiving fair treatment under the law. Such actions illustrate a larger pattern of corruption and disregard for constitutional protections, necessitating federal intervention to rectify these injustices.

3. Federal Intervention Required

Under 18 U.S.C. §§ 241, 242, and 1001, federal intervention is necessary to address the conspiracy and inaction by state actors that led to the deprivation of Plaintiff's constitutional rights. Plaintiff has been denied justice at every level, and it is imperative that the federal court intervene to uphold constitutional guarantees and prevent further harm.

4. Conclusion

I respectfully submit this **Causes of Action Summary with Supporting Exhibits** to facilitate the Court's review of my case. Given the challenges I face due to my legal blindness and current living situation, I have endeavored to present my claims as clearly as possible.

5. Damages

Damages Breakdown by Defendants

Defendant	Cause of Action	Damages	Notes
Clackamas County and Jail Officials	Various (Unlawful Arrest, Malicious Prosecution, etc.)	**Total:** $TBD by Trial • Loss of Assignment of Benefits (AOB): $111,943.56 • Loss of Counterclaim: $32,599.50	• Exhibit 9: Lost AOB • Exhibit 12: Property destruction and medical neglect

Defendant	Cause of Action	Damages	Notes
		• Destruction of Property (tools, electronics): $TBD by Trial • Emotional Distress: $TBD by Trial • Legal Costs and Missed Professional Opportunities: $TBD by Trial • Punitive Damages: $TBD by Trial **Total:** $TBD by Trial	• Exhibit 21: Property damage • Exhibit 26 & 27: Policy violations
West Linn Police Department and Officers (Catlin Blyth & Dana Gunnarson)	Various (False Imprisonment, Malicious Prosecution, etc.)	• Destruction of Property: $TBD by Trial • Emotional Distress: $TBD by Trial • Loss of Reputation/Professional Harm: $TBD by Trial • Punitive Damages: $TBD by Trial	• Exhibit 19 & 20: Property damage • Exhibit 23: Biased investigation • Exhibit 26: Policy violations
Deputy District Attorney Rebecca Portlock	Malicious Prosecution, Conspiracy with Defendants	**Total:** $TBD by Trial • Emotional Distress: $TBD by Trial • Punitive Damages: $TBD by Trial	• Exhibit 2 & 34: DA Portlock's misconduct • Exhibit 1, 2, 3: Court proceedings and suppression of evidence

Defendant	Cause of Action	Damages	Notes
John Does 1-2	Various (False Imprisonment, Deliberate Indifference, etc.)	**Total:** $TBD by Trial • Emotional Distress: $TBD by Trial • Loss of Liberty: $TBD by Trial • Punitive Damages: $TBD by Trial	• Exhibit 12 & 13: Unlawful detention and file deletion
Clackamas County Judiciary	Various (Conspiracy, Suppression of Evidence)	**Total:** $TBD by Trial • Emotional Distress: $TBD by Trial • Punitive Damages: $TBD by Trial	• Exhibit 1, 2, 3, 34: Judicial misconduct and evidence suppression

6. Jury Trial Request

SEVENTH AMENDMENT DEMAND FOR A CIVIL JURY TRIAL

- **Legal Basis:**
  - The Seventh Amendment to the Constitution guarantees the right to a jury trial in civil cases where the value in controversy exceeds twenty dollars. In this action, the Plaintiff asserts claims arising under federal and state law, and the amount in controversy exceeds the jurisdictional threshold required for a jury trial.
- **Demand:**
  - Plaintiff Tyler Allen Lofall hereby demands a trial by jury on all issues so triable in this case.

7. Final Prayer for Relief

WHEREFORE, Plaintiff respectfully requests that this Court:

1. Enter judgment in favor of Plaintiff and against Defendants on all causes of action.
2. Award compensatory damages in an amount to be determined at trial.
3. Award punitive damages against individual Defendants for their willful, malicious, and reckless conduct.
4. Award fees and costs pursuant to a substitute for attorney fees pursuant to 42 U.S.C. § 1988 and any other applicable provisions.
5. Grant injunctive relief as appropriate to prevent further violations of Plaintiff's rights.
6. Grant such other and further relief as the Court deems just and proper.

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8. Damages Breakdown and Supporting Exhibits

Cause of Action	Exhibit Number	Exhibit Description	How It Ties In
Unlawful Arrest/False Arrest	Exhibit 23	Officer Gunnarson's biased investigation report	Shows lack of probable cause and reliance on manipulated witness statements
	Exhibits 19 & 20	Photographs showing Macy as the aggressor	Visual evidence contradicting officers' claims
Malicious Prosecution	Exhibit 2	Transcript where Macy recants and exposes prosecutorial misconduct	Demonstrates DA Portlock's malicious intent
	Exhibit 3	List of ignored discovery requests	Highlights suppression of critical exculpatory evidence

Cause of Action	Exhibit Number	Exhibit Description	How It Ties In
	Exhibit 23	Evidence of fabricated charges	Supports claims of fabricated or manipulated charges
Conspiracy to Deprive Civil Rights	Exhibit 1	Transcript showing collusion to delay trial	Provides direct evidence of Defendants working together to obstruct justice
	Exhibit 2	Macy's testimony revealing coercion	Shows Macy being pressured to provide false testimony
	Exhibit 3	Ignored legal requests indicating coordinated obstruction	Demonstrates Defendants intentionally disregarding Plaintiff's legal motions
Failure to Prevent Harm	Exhibit 4	Police dispatch records of Plaintiff's calls for help	Demonstrates Plaintiff's reports of Macy's aggression and Defendants' inaction
	Exhibit 21	Photographs of property damage caused by Macy	Visual evidence of the harm Plaintiff was subjected to
Cruel and Unusual Punishment	Exhibit 12	Documentation of harmful jail conditions	Provides evidence of neglect and exposure to unsafe conditions in jail
	Exhibit 13	Evidence of deleted legal files, exacerbating punishment	Shows intentional obstruction of Plaintiff's legal defense

Cause of Action	Exhibit Number	Exhibit Description	How It Ties In
False Imprisonment	Exhibit 12	Records showing unlawful extended detention	Confirms Plaintiff was unlawfully held beyond court's release order
Deliberate Indifference	Exhibit 12	Denial of medical care and basic needs	Evidence of Plaintiff's medical needs being ignored
	Exhibit 13	Deletion of legal files critical to Plaintiff's defense	Shows intentional obstruction of Plaintiff's ability to receive proper legal representation
Intentional Interference with Contractual Relations	Exhibit 9	Documentation of lost AOB due to interference	Shows financial impact of Defendants' actions on Plaintiff's contractual rights
	Exhibit 12	Evidence of denied access to legal resources	Demonstrates how Plaintiff was obstructed from defending his contractual interests
Monell Claim – Failure to Train and Official Custom of Deliberate Indifference	Exhibit 26	WLPD reports showing policy violations	Highlights systemic policy failures contributing to constitutional violations
	Exhibit 27	WLPD Policy Manual highlighting required procedures that were ignored	Demonstrates lack of proper training and adherence to required procedures

Cause of Action	Exhibit Number	Exhibit Description	How It Ties In
Denial of Right to Civil Jury Trial	Exhibit 1	Transcript showing Defendants' efforts to delay and manipulate trial proceedings	Provides evidence of intentional obstruction of Plaintiff's right to a jury trial
	Exhibit 2	Transcript of Court Proceedings showing trial delays and DA Portlock's statements	Demonstrates manipulation to delay trial and deny a fair trial
	Exhibit 8	Body Camera Footage Suppression Evidence	Shows suppression of exculpatory evidence necessary for a fair jury trial
	Exhibit 13	Deletion of Plaintiff's Legal Files by Guard Baker	Indicates intentional obstruction of legal defense, preventing a fair jury trial
Violation of Right to Due Process	Exhibit 1	Motion to Leave to File Second Amended Complaint	Highlights Defendants' efforts to obstruct justice and deny due process
	Exhibit 2	Transcript of Court Proceedings and DA Portlock's statements	Demonstrates intentional manipulation to undermine Plaintiff's legal defense
	Exhibit 3	List of Ignored Discovery Requests and Motions	Shows Defendants' suppression of critical evidence and legal filings

Cause of Action	Exhibit Number	Exhibit Description	How It Ties In
	Exhibit 4	Police Dispatch Records from March 4th, 2022	Provides evidence of Defendants' failure to act on Plaintiff's reports
	Exhibit 5	Domestic Violence Assessment Surveys	Indicates false allegations and lack of legitimate charges
	Exhibit 9	Assignment of Benefits (AOB) Documentation valued at $111,943.56	Shows financial and property rights infringed upon without due process
	Exhibit 12	Medical Records and Jail Reports detailing Plaintiff's medical neglect and unlawful detention	Demonstrates violations of due process through prolonged detention and denial of medical care
	Exhibit 13	Deletion of Plaintiff's Legal Files by Guard Baker	Shows intentional obstruction of Plaintiff's legal defense
	Exhibits 19 & 20	Photographs depicting Macy attacking Plaintiff with a hammer and hose	Supports claims of self-defense and lack of probable cause
	Exhibit 21	Photographs of property damage caused by Macy	Highlights the harassment and need for police protection
	Exhibit 23	Discovery from Officer Dana Gunnarson	Reveals biased investigation and lack of probable cause

Cause of Action	Exhibit Number	Exhibit Description	How It Ties In
	Exhibit 26	West Linn Police Department Reports and Policy Violations	Indicates systemic failures and lack of proper investigation
	Exhibit 27	Documentation of inadequate training and supervision	Shows municipal liability for failure to train
	Exhibit 32	Additional declarations and testimonies supporting conspiracy	Provides evidence of systemic corruption and obstruction of justice
	Exhibit 34	Documents supporting DA Portlock's malicious prosecution	Further evidence of DA Portlock's intent to unjustly prosecute Plaintiff
Violation of Right to Counsel and Fair Trial	Exhibit 1	Motion to Leave to File Second Amended Complaint	Shows Defendants' efforts to obstruct effective legal representation
	Exhibit 2	Transcript of Court Proceedings showing trial delays and DA Portlock's statements	Demonstrates manipulation to delay trial and deny a fair trial
	Exhibit 5	Domestic Violence Assessment Surveys	Indicates false allegations undermining effective legal representation
	Exhibit 8	Body Camera Footage Suppression Evidence	Shows suppression of exculpatory evidence necessary for a fair trial

Cause of Action	Exhibit Number	Exhibit Description	How It Ties In
	Exhibit 13	Deletion of Plaintiff's Legal Files by Guard Baker	Indicates intentional obstruction of legal defense, preventing a fair trial

9. Conclusion

The detailed factual and legal allegations presented demonstrate that the Defendants, acting under color of state law, engaged in a series of actions that directly violated the Plaintiff's constitutional rights. Plaintiff respectfully requests that the Court grant the relief sought to rectify the profound misconduct and ensure accountability for the egregious constitutional violations perpetrated by the Defendants.

10. Prayer for Relief

WHEREFORE, Plaintiff respectfully requests that the federal court intervene and provide the following relief:

1. **Compensatory Damages:**
   - Compensatory damages for financial losses, emotional distress, and the impact on personal and professional life as outlined in the damages section.
2. **Punitive Damages:**
   - Punitive damages for the willful and reckless disregard for Plaintiff's rights by the Defendants, intended to deter future violations.
3. **Injunctive Relief:**

- Injunctive relief to mandate systemic reforms within the West Linn Police Department, Clackamas County Jail, and relevant state entities to prevent further violations of civil and constitutional rights.

4. **Declaratory Judgment:**
   - A declaration that the Defendants' actions violated Plaintiff's rights under the Fourth, Seventh, and Fourteenth Amendments of the United States Constitution.
5. **Restoration of Rights:**
   - Restoration of Plaintiff's claims, including the reinstatement of contractual rights and the opportunity for a fair jury trial.
   - Reasonable costs, and any other relief the Court deems just and appropriate.

Respectfully Submitted on my own behalf,

This 9th day of October 2024,

Tyler Allen Lofall
Plaintiff Pro Se

RESPECTFULLY SUBMITTED ON MY OWN BEHALF,
THIS 5th DAY OF OCTOBER 2024,

/s/ Tyler A Lofall

Tyler Allen Lofall
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Hillsboro, OR 97124
Phone: (386) 262-3322

IV. ATTACHMENTS

- **Exhibit List:** Detailed descriptions of each exhibit are provided in the attached exhibit list.
- **Prescription Confirming Legal Blindness**